

# TRIMCO GROUP



## TRIMCO GROUP

# Conflict of Interest Policy & Procedure

version 2025.1

Policy Owner: Group General Counsel & Compliance

Approved by: Group CEO

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## INTRO

1. This Conflict of Interest Policy and Procedure (the "Policy") establishes guidelines and procedures to identify, disclose, and manage conflicts of interest that may arise among employees, officers, and other individuals associated with Trimco Group and all its affiliated companies ("TRIMCO"). The Policy aims to ensure that all decisions and actions taken on behalf of TRIMCO are made in the best interests of TRIMCO and its stakeholders, free from any personal or conflicting interests.

2. With a conflict of interest, appearance is almost as important as reality. The mere perception that a concerned employee is acting for personal gain, giving preferential treatment, or otherwise failing to exercise independent and impartial judgment can be very damaging to TRIMCO's reputation for integrity and fairness, both within and outside of the company. With appropriate disclosure, management will be able to assess the circumstances and address any actual conflicts or false perceptions that may be involved.

3. This Policy is to be read together with the Trimco Group Code of Business Conduct and Ethics (the "CoC") and its underlying policies such as Trimco Group Anti-Bribery and Anti-Corruption Policy etc. All of the terms in this Policy have the same meaning as those defined in the Code.

4. All newly onboarded staffs must fill up Declaration of Conflict of Interest form even if there is no conflict of interest to declare.

## DEFINITION OF CONFLICT OF INTEREST

5.1 A conflict of interest arises when an individual's personal, financial, or other interests interfere or have the potential to interfere with their ability to act in the best interests of TRIMCO. Such conflicts may compromise objectivity, independence, or impartiality in decision-making or actions.

5.2 A "conflict of interest" for this purpose occurs when a person's private interest inclines the person, consciously or unconsciously, or appears to incline the person to act in a manner which is not in the interests of TRIMCO. You may have a conflict of interest if you are involved in any activity that prevents you from performing your duties to TRIMCO properly, or that may create a situation that could affect your ability to act objectively, effectively and in the best interests of TRIMCO, including due to among other things, personal interests or receipt of benefits from our relationships with companies, business partners, counterparties, investment banks, brokerage firms, vendors, suppliers, contractors, service providers, and other constituencies. Accordingly, you must place TRIMCO's interest in any business matter ahead of any personal interest. Remember that TRIMCO's interest includes TRIMCO's obligations to its customers.

5.3 Conflicts of Interest may be real, perceived or potential. A perceived conflict of interest arises where other people may reasonably conclude that a manager's decision-making process has been relevantly compromised by a conflict of interest. A potential conflict of

Interest is a situation in which a conflict of interest may happen in the future. In recognition of the potential damage caused by real, perceived and potential conflicts of interests, all such conflicts are subject to the Policy. There could be conflict of interest if your family members work for our competitors.

## **DISCLOSURE OBLIGATIONS**

**6.1. Duty to Disclose:** All individuals employed by TRIMCO have a duty to promptly disclose any actual or potential conflicts of interest to your manager, local HR, country manager or the Legal & Compliance department.

**6.2. Scope of Disclosure:** Individuals shall disclose conflicts of interest that arise from their own interests, as well as conflicts involving their immediate family members, a parent or parent equivalent (e.g., adoptive parent), close relative or friend, spouse, cohabitant, fiancée, common law, or anyone else with whom you are in, or have been in, a romantic or intimate relationship or close associates.

You may also have a conflict of interest or the appearance of a conflict of interest because of a “close personal relationship” with another employee at TRIMCO or a counterparty with which TRIMCO is engaging (e.g., your spouse works at an entity that is being considered as a service provider). A friend or business contact may not on the face of it give rise to conflict of interest, however if your friend or business associate may or are influencing or perceived to be able to influence your neutrality in decision making or performance, the Policy will apply. To ensure that these relationships are managed appropriately, and to deal with any conflicts of interest in an appropriate and responsible manner, you are expected to disclose the existence of such relationships to your manager, the HR department, country manager and or the Legal & Compliance.

**6.3. Timely Disclosure:** Conflicts of interest shall be disclosed as soon as an individual becomes aware of their existence, and on an ongoing basis whenever new conflicts arise.

## **PROCEDURES FOR MANAGING CONFLICTS OF INTEREST**

**7.1. Review and Evaluation:** The designated authority (country manager and the group CEO) in conjunction with the Legal & Compliance department shall assess each disclosed conflict of interest to determine its nature, significance, and potential impact on TRIMCO.

**7.2. Mitigation Measures:** Appropriate measures shall be implemented to manage conflicts of interest effectively. These may include, but are not limited to:

- a. **Recusal:** An individual with a conflict of interest may be required to recuse themselves from decision-making or actions related to the conflicting matter.
- b. **Disclosure:** Relevant stakeholders may be informed of the conflict of interest to ensure transparency and maintain trust.

- c. **Independent Review:** In certain cases, an independent third party or expert may be engaged to provide an objective evaluation or advice on the matter.
- d. **Divestment:** If necessary, individuals may be required to divest themselves of conflicting interests or assets that could compromise their impartiality.
- e. **Other Measures:** Additional measures appropriate to the specific circumstances may be implemented to manage conflicts of interest.
- f. **Waiver:** Special waiver being granted by the designated authority.

## CONFIDENTIALITY AND NON-RETALIATION

8.1. **Confidentiality:** All disclosures of conflicts of interest shall be treated confidentially to the extent possible, with information shared only with individuals who have a legitimate need to know.

8.2. **Non-Retaliation:** TRIMCO prohibits retaliation against individuals who make good faith disclosures of conflicts of interest. Any acts of retaliation will be subject to disciplinary action.

## RECORDKEEPING AND COMPLIANCE

9.1. **Documentation:** TRIMCO shall maintain records of all disclosed conflicts of interest, the actions taken to manage them, and any related decisions or agreements. A Conflict of Interest Register will be maintained by Legal & Compliance department.

9.2. **Compliance Monitoring:** TRIMCO shall periodically review and monitor compliance with the Policy, providing guidance, training, and support to individuals to ensure their understanding and adherence to conflict of interest obligations. All country managers are responsible to ensure compliance at their respective offices, if in doubt, country managers must reach out to Legal & Compliance department as soon as possible.

## CONSEQUENCES OF NON-COMPLIANCE

10. Please note that violations of company procedures, policies or applicable laws may lead to appropriate disciplinary measures depending on the circumstances. In serious cases, this may include termination of employment or contractual relationship, or legal action, if deemed necessary. Violations may also lead to legal consequences such as potential breach of local or international anti-bribery and corruptions laws and damage to TRIMCO's reputation.

11. The Policy shall be reviewed periodically to ensure its continued relevance and effectiveness. Any updates or amendments to the Policy shall be communicated to all relevant employees and stakeholders.

## CONTACT

If you have any questions on this policy, please contact:

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|---------------------------------------------|------------------------------------------|
| Owner of policy<br>(TRIMCO entity)          | Trimco Group (Hong Kong) Company Limited |
| Approved by<br>(name and title)             | William Tan, General Counsel             |
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